

City of Johannesburg v Blue Moonlight Properties

CITY OF JOHANNESBURG METROPOLITAN MUNICIPALITY v BLUE MOONLIGHT PROPERTIES 39 (PTY) LTD AND ANOTHER 2012 (2) SA 104 (CC)

Holding

It is not enough for a municipality to refuse emergency housing to persons evicted from private property on the basis that its policy only covers persons evicted from state-owned property. The City's housing policy was unconstitutional to that extent. Courts must balance property rights and housing rights under PIE and the Constitution; dates of eviction may be linked to provision of alternative accommodation.

NOTE: Educational case summary.

— End of curated extract. Verify official text before reliance. —